HEAVITAS Font
FONT SOFTWARE END USER LICENSE AGREEMENT

This Font Software End User Licence Agreement ("Agreement") governs the use of the font software identified in the applicable purchase record, licence certificate, invoice or other licensing documentation ("Font Software"). The Font Software is created and owned by Deepak Singh Dogra ("Licensor"). By downloading, installing, purchasing, accessing or using the Font Software, the person or entity doing so ("Licensee") agrees to be bound by this Agreement and by any licence-specific terms applicable to the purchase.

1. DEFINITIONS
For purposes of this Agreement:
"Font Software" means the digital font files supplied by or on behalf of the Licensor, together with their glyphs, outlines, designs, characters, font data, coding, structure, naming, metadata, documentation and associated materials, including any format or technical version supplied to the Licensee. "Licence" means the limited rights expressly granted to the Licensee under this Agreement and the applicable Licence-Specific Terms. "Licence-Specific Terms" means the rights and restrictions stated in the applicable invoice, quotation, licence certificate, order confirmation, purchase record or separate written licence issued or authorised by the Licensor. "Licensed Entity" means the person or legal entity identified in the applicable Licence-Specific Terms. "Finished Artwork" means a static or rendered creative output incorporating characters or glyphs from the Font Software, where the Font Software itself is not distributed with or embedded in that output except as expressly permitted under this Agreement. "Commercial Use" means any use undertaken for, on behalf of, or in connection with a business, organisation, employer, client, commercial project, product, service, publication, advertising activity, brand, monetised social-media account or other activity undertaken for commercial advantage or monetary consideration. "Specialised Use" means any use requiring a licence beyond the rights of a standard Desktop Licence, including but not limited to branding, trademarks, packaging, webfonts, applications, software, games, servers, SaaS, broadcast, advertising, publishing, OEM use and enterprise deployment.

2. OWNERSHIP AND RESERVATION OF RIGHTS
The Font Software is proprietary software and intellectual property of the Licensor. The Licensee is acquiring a licence to use the Font Software and not ownership of the Font Software. All rights, title and interest in and to the Font Software not expressly granted under this Agreement are reserved by the Licensor. Nothing in this Agreement transfers or assigns to the Licensee any copyright, design right, trademark right or other intellectual property right in the Font Software. The Licensee shall not represent itself as the owner, author, creator or rights holder of the Font Software.

3. PERSONAL AND NON-COMMERCIAL USE
The Font Software may be used without charge for genuine personal, non-commercial purposes where such use is expressly permitted by the Licensor or applicable distribution platform. Personal use does not include use: for or on behalf of a business or organisation; for an employer or client; in a commercial project; for advertising or marketing; in connection with a product or service; in a brand or corporate identity; on a monetised social-media account; in commercial publication; or for any activity undertaken for commercial advantage or monetary consideration. A Commercial Licence must be obtained before Commercial Use.

4. COMMERCIAL LICENCE
Commercial Use requires a valid Licence purchased from the Licensor or an authorised distributor. The scope of the Licence is limited to the rights expressly granted in the applicable Licence-Specific Terms. A Licence for one category of use does not automatically grant rights for another category of use.

A Standard Desktop License is available for US$15 for one (1) user on one (1) device, unless otherwise specified at the time of purchase. The Standard Desktop License permits the Font Software to be installed and used by one (1) licensed user on one (1) device. The license may not be shared or transferred between users or devices.

You can purchase a Desktop License for $15 through PayPal. The payment account is ds_dogra@yahoo.com. You can make the payment using the "Donate to author" link next to the Font on DaFont–(https://www.dafont.com/heavitas.font) You will receive a confirmation email regarding your license purchase.

If you require a license other than a Standard Desktop License, including an Enterprise, Web, App, eBook, Gaming, Digital Advertising, Broadcast, OEM, Server or Multi-User License, please contact the Licensor at ds_dogra@yahoo.com.

5. STANDARD DESKTOP LICENCE

Unless otherwise stated in the applicable Licence-Specific Terms, a Standard Desktop Licence permits the Licensed Entity and the licensed user(s) to install and use the Font Software on the permitted number of computers or devices solely to create Finished Artwork, documents, presentations, printed materials and digital images.

The Licence may not be shared, transferred or used to increase the number of permitted users or installations.

A Standard Desktop Licence does not permit the Font Software to be embedded in websites, applications, software, games, digital products or hardware, or used for logo, trademark, brand identity or commercial product packaging purposes.

Unless expressly stated otherwise in the applicable Licence-Specific Terms, a Standard Desktop Licence does not permit:

A. Embedding, hosting or distributing the Font Software as a webfont.

B. Embedding the Font Software in an application, software, game, digital product, hardware or other distributed product;

C. Use through a server, cloud service, SaaS platform or other networked service.

D. Use of the Font Software on commercial product packaging, labels, containers, bottles, cartons, wrappers, sleeves or similar product applications.

E. Use of the Font Software in a logo, wordmark, trademark, service mark, corporate identity, product identity or other distinctive brand element.

F. Distribution of the Font Software to clients, customers, users or other third parties, except where expressly permitted;

G. Modification, conversion, renaming or creation of derivative Font Software.

H. Resale, sublicensing, leasing or redistribution of the Font Software; or

I. Use by an entity, affiliate, subsidiary, client or third party other than the Licensed Entity.

Separate licences may be available for Desktop, Agency, Enterprise, Logo/Branding, Packaging, Web, App, Software, Digital Advertising, Broadcast, eBook, Gaming, Server, OEM and other specialised uses.

6. CLIENT AND AGENCY WORK

A licensed designer, agency or service provider may use the Font Software to create Finished Artwork for a client, provided that such use remains within the scope of the Licence held by the designer, agency or service provider. Delivery of Finished Artwork to the client does not transfer or grant the client any rights in the Font Software.

The client may not install, access, use, edit, modify or otherwise use the Font Software under the designer's, agency's or service provider's Licence. If the client requires access to or use of the Font Software, including for editing existing artwork, creating additional designs, maintaining or modifying brand materials or any other direct use, the client must obtain a separate Licence appropriate to that use. A client's receipt or ownership of Finished Artwork does not itself constitute a Font Software Licence.

7. SERVICE PROVIDERS AND PRODUCTION VENDORS

You may temporarily provide the Font Software to a printer or other service provider working on your behalf solely for the purpose of producing work for you, provided that the service provider agrees to use the Font Software solely for that purpose, agrees to comply with the terms of this Agreement and deletes or otherwise removes all copies of the Font Software from its systems upon completion of the work.

This provision does not grant the service provider an independent Licence.

8. LOGOS, TRADEMARKS AND BRAND IDENTITY

If you require the Font Software to create or form part of a logo, wordmark, trademark, service mark, corporate identity, product identity, trade identity, brand identity or other distinctive recurring brand element, please contact the Licensor at ds_dogra@yahoo.com before using the Font Software for any such purpose. You may requires a separate Logo/Branding Licence unless expressly authorised otherwise in writing by the Licensor.

9. COMMERCIAL PRODUCT PACKAGING AND PRODUCT APPLICATIONS

Use of the Font Software in or on commercial product packaging or product applications, including bottles, containers, cartons, labels, wrappers, sleeves, boxes, point-of-sale materials and similar commercial applications, requires a separate Packaging/Product Licence unless expressly authorised otherwise in writing. The applicable Licence-Specific Terms may specify the relevant brands, products, territories, quantities, duration and other limitations. Please contact the Licensor at ds_dogra@yahoo.com before using the Font Software for any such purpose.

10. DOCUMENT EMBEDDING

The Licensee may embed the Font Software into documents solely to the extent reasonably necessary to permit those documents to be viewed or printed, provided that the embedding does not permit the recipient to extract, install or otherwise use the Font Software as a font. Any broader document or publishing use may require a separate Licence.

11. MODIFICATION AND DERIVATIVE FONT SOFTWARE

The Licensee may not, without prior written permission from the Licensor:

A. Modify, alter, adapt or convert the Font Software.

B. Rename or rebrand the Font Software.

C. Reverse engineer, decompile or disassemble the Font Software.

D. Create derivative font software.

E. Extract or reconstruct glyphs, outlines or font data for the purpose of creating another font.

F. Create a substantially similar or competing font from the Font Software.

G. Remove or alter proprietary notices, metadata, licensing information or other rights-management information.

This restriction applies regardless of the technical format into which the Font Software is converted.

12. ARTIFICIAL INTELLIGENCE AND MACHINE LEARNING

You may not use the Font Software, its glyphs, outlines, source files or other components for training, fine-tuning, testing or developing artificial intelligence or machine-learning models or for generating derivative fonts or font-related models. You may not use the Font Software to generate or assist in generating derivative fonts. You may not use the Font Software to create datasets for font recognition, font generation or font reconstruction. You may not use the Font Softwarefor any other computational process intended to reproduce, reconstruct, imitate or generate the Font Software or substantially similar font designs, unless expressly authorised in writing by the Licensor.

13. REDISTRIBUTION AND THIRD-PARTY ACCESS

The Licensee may not copy, reproduce, distribute, share, sell, rent, lease, lend, sublicense, transfer or otherwise make the Font Software available to any third party except where expressly permitted by this Agreement or the applicable Licence-Specific Terms. The Licensee may not upload the Font Software to public repositories, file-sharing services, cloud storage accessible to unauthorised persons, font libraries, template platforms or other distribution services.

14. LICENCE SCOPE, ENTITY AND AFFILIATES

A Licence is personal to the Licensed Entity identified in the purchase record or Licence-Specific Terms.

A Licence purchased by one person or entity does not automatically extend to another company; parent company; subsidiary; affiliate; sister company; franchisee; client; agency; contractor; or other third party.

Where an enterprise or group-wide Licence is intended, the applicable Licence-Specific Terms must expressly identify the entities, brands, users, territories, products and/or other scope covered by that Licence.

15. TERRITORY, TERM AND OTHER LICENCE LIMITATIONS

Unless expressly stated otherwise, the rights granted are limited to the territory, duration, users, devices, brands, products, quantities and other limitations specified in the applicable Licence-Specific Terms. Where the Licensee's intended use expands beyond those limitations, the Licensee must obtain the appropriate additional Licence before commencing the expanded use.

16. LICENCE RECORDS AND PROOF OF AUTHORISATION

The Licensee shall retain its purchase record, invoice, licence certificate and other documentation evidencing the Licence obtained. The Licensor may reasonably request information necessary to verify whether a particular use falls within the scope of the Licence, including the Licensed Entity, applicable Licence, number of users or devices, brands, products, territories and categories of use. A claim that the Font Software was downloaded from a free or third-party source does not, by itself, establish a Commercial Licence.

17. BREACH, SUSPENSION AND TERMINATION

Any use of the Font Software outside the rights expressly granted under this Agreement or the applicable Licence-Specific Terms constitutes unauthorised use and a material breach of this Agreement. Where permitted by applicable law, the Licensor may terminate the Licence upon material breach. Upon termination, or upon expiry where the Licence is time-limited, the Licensee must cease all use of the Font Software and delete or permanently disable all copies within its possession or control, except where retention is required by law. Termination does not affect:

A. Rights or remedies accrued before termination.

B. The Licensor's right to seek outstanding Licence fees.

C. Claims arising from unauthorised use or breach.

D. Provisions which by their nature are intended to survive termination.

18. UNAUTHORISED USE AND ADDITIONAL LICENSING

Where the Font Software has been used outside the scope of an existing Licence, the Licensor may, without prejudice to any other rights or remedies, require the Licensee to:

a. cease the unauthorised use

b. obtain an appropriate Licence for future use

c. provide information reasonably necessary to determine the scope and duration of the use and/or

d. pay applicable Licence fees or other amounts agreed between the parties

Acceptance of a Licence fee or issuance of a subsequent Licence does not, unless expressly agreed in writing, constitute a waiver of any rights or remedies arising from prior unauthorised use.

19. LICENCE-SPECIFIC TERMS AND ORDER OF PRECEDENCE

The specific rights, permitted users, territory, duration, products, brands, quantities, devices and other limitations applicable to a particular Licence may be stated in the corresponding invoice, quotation, licence certificate, order confirmation or separate written agreement issued or authorised by the Licensor.

In the event of a conflict between this Agreement and the Licence-Specific Terms, the Licence-Specific Terms shall govern only to the extent of the specific rights and limitations expressly addressed therein.

All other provisions of this Agreement remain in effect.

20. NO IMPLIED RIGHTS

No right or permission is granted by implication, estoppel or otherwise. Any right not expressly granted under this Agreement or the applicable Licence-Specific Terms is reserved by the Licensor.

21. NO TRANSFER OR ASSIGNMENT

The Licensee may not assign, transfer, sublicense or otherwise dispose of its Licence without the Licensor's prior written consent. Any purported transfer or assignment in violation of this provision is ineffective to the extent permitted by applicable law.

22. CHANGES TO THE FONT SOFTWARE

The Licensor may release updated, modified, corrected or revised versions of the Font Software. Unless otherwise stated, a Licence to one version does not automatically grant rights to separately released versions, families, expansions or substantially different editions.

LICENSOR

Deepak Singh Dogra
Creator and Owner of the Font Software
Email: ds_dogra@yahoo.com | deepak@graphite.tv
Website: www.graphite.tv